

		the Respondent's registered agent – not in the same manner as service of a summons as required by Code of Civil Procedure section 1290.4. Indeed, neither the original nor amended petition has been served in an appropriate manner. Furthermore, there is no proof of service showing the notice of hearing was served at all. Instead, the proof of service attached to the notice of hearing is the same one attached to the amended petition, i.e., showing the amended petition was served by mail. There is no proof showing notice was served at all. Proof of service must be served at least five court days before the hearing. The court also notes the amended petition appears to set forth the date upon which Petitioner served the award on Respondent, not the date upon which Petitioner was served with the arbitration award by the arbitrator. (ROA 21 at ¶ 9; ROA 15.) The date upon which Petitioner was served is relevant in determining compliance with Code of Civil Procedure section 1288.4 which states no petition may be served and filed "until at least 10 days after service of the signed copy of the award upon the petitioner." The amended petition is DENIED. Petitioner has been given multiple opportunities to comply with the application service and notice requirements, but has repeatedly failed to do so. Counsel for Petitioner is ordered to give notice of this ruling.
2.	<i>Petition of Greenberg</i> <i>2026-01559277</i>	Before the court is the continued hearing on the petition to compel inspection of corporate records filed by petitioner David Greenberg (Petitioner). As more fully set forth below, the petition is DENIED WITHOUT PREJUDICE for lack of proof service. The court first heard the petition on July 9, 2026. At that time, the court continued the hearing to the current date due to the lack of service. Specifically, the court ruled as follows: "The court notes the case file reflects that Petitioner is self-represented. [Attorney Steven] Napoles represents he recently substituted in.

	The court notes there is no filed substitution of attorney. Mr. Napoles informs he will submit one forthwith. The court confirms the tentative ruling as the order of the court as follows: Before the court is the petition to compel inspection of corporate records filed by petitioner David Greenberg (Petitioner). As set forth more fully below, the hearing is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23. A stockholder's right to inspect the corporate books may be enforced by a writ of mandate. (<i>Webster v. Barlett Estate Co.</i> (1917) 35 Cal.App. 283, 285; see also <i>Most v. First Nat. Bank of San Diego</i> (1966) 246 Cal.App.2d 425; <i>Tritek Telecom, Inc. v. Superior Court</i> (2009) 169 Cal.App.4th 1385.) A petition for writ of mandate must be served on respondent (and real parties in interest, if any) in the manner required for service of a summons and complaint, i.e., pursuant to Code of Civil Procedure section 415.10 et. seq. (<i>Board of Supervisors v. Superior Court</i> (1994) 23 Cal.App.4th 830, 839.) Here, Petitioner has not filed any proof of service showing timely and properly service of the petition and notice of hearing on respondent Plastoker, Inc. (Respondent). Based on the foregoing, the hearing on the petition is CONTINUED as stated above. Petitioner is ordered to timely and properly serve Respondent and to file proof of such service at least five court days before the continued hearing date. Petitioner is ordered to give notice of this ruling." Despite his representations at the last hearing, Attorney Napoles has not filed a substitution of attorney naming himself as counsel of record. Moreover, Petitioner has not filed any notice of the court's prior ruling in this matter as ordered by the court. As such, there is no notice in the court's file showing notice of today's hearing. On August 28, 2026, Petitioner did file a proof of substitute service. (ROA 22.) Service, however, remains defective. Substitute service on an entity is effectuated by leaving a copy of the summons and complaint in the office of the person authorized to be served on behalf of the entity during usual business hours with the person "apparently in charge thereof" and by thereafter mailing a copy of the summons and complaint by first-class mail to such person
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		at the place where the copies were left. Service is deemed complete on the 10th day after the mailing. (Code Civ. Proc., § 415.20, subd. (a).) Here, the proof of service shows, on August 28, 2026, at 7:10 a.m., the petition and a notice of continued hearing (as noted above, no such document has been filed with the court) were sub-served on "Jason Greenberg" at 12 Globe Lane, Mission Viejo CA 92694 on co-occupant "Mike 'Doe'." This appears to be a residential address and not a business address, and Jason Greenberg's relation to Respondent is not identified. There is no mention of Respondent Plastoker, Inc. anywhere in the proof of service. Furthermore, there is no proof the summons and complaint were thereafter mailed to Respondent. As such, there is no proof of proper service. Petitioner has been given multiple opportunities to effectuate proper service, but has failed to do so. Accordingly, the petition is DENIED WITHOUT PREJUDICE. Petitioner is ordered to give notice of this ruling.
3.	<i>The City of Dana Point vs. Paul Fredric Meyers, Trustee of the Meyers Family Trust</i> 2022-01301502	Before the court is the motion of the court-appointed receiver Mark S. Adams, Esq. at California Receivership Group, Inc. (Receiver) for order distributing remaining funds in the receivership, discharging the receiver, and exonerating the receiver's surety bond. Receiver states there is a total of \$112,275.37 remaining in the receivership estate following the sale of the real property at issue in this case. It appears all Receiver's bills and costs already have been paid from the proceeds of the sale and Receiver seeks no additional payment of any fees or costs related to this action. The court finds no objections were made to any monthly accounting or payments related to the receivership. With the motion, Receiver only requests distribution of the remaining \$112,275.37 to attorneys for Receiver, discharge of Receiver, and exoneration of Receiver's bond. As there currently are no other claims on record for the \$112,275.37, the court orders the \$112,275.37 to be paid to attorneys Ervin Cohen & Jessup LLP, for their bills related to representing Receiver. Once the court receives notification the funds have been paid and nothing remains in the receivership account, the court will discharge the receiver and order Receiver's \$10,000 surety (ROA #13) to be exonerated as there will